

City of Oroville – Measure S

Arguments in support of, or in opposition to, the proposed laws are the opinions of the authors.

S City of Oroville – Resolution 9465 – Charter Amendment: Park Commission

Shall the City of Oroville Charter be amended to affirm the current and previous practice of the Park Commission performing in an Advisory capacity to the City Council? Yes or No

IMPARTIAL ANALYSIS OF MEASURE S

The Oroville City Council placed Measure S on the ballot. Measure S would amend Article X, Section 2 of the Oroville City Charter, concerning the Park Commission.

The Charter currently establishes a five-member Park Commission. Members are appointed by the City Council, serve five-year terms, and receive no compensation. The Charter also assigns specified powers and duties concerning City parks to the Department of Parks and the Park Commission. These provisions address park management and operation; park facilities, concessions, and charges; recreation uses; certain landscaping; appointment of a parks superintendent; the park fund and control of its expenditures; acquisition and control of park property; donated park improvements; and the continued public use of land set apart or dedicated as a public park.

Measure S would retain the Commission's five-member composition, appointment by the City Council, five-year terms, and service without compensation. It would replace the remaining provisions with language requiring the Park Commission to advise the City Council on matters concerning the operation and regulation of City parks. Commission recommendations would be advisory and would not bind the City Council. However, before the City Council takes action related to City parks, the measure would require the Council to receive a recommendation from the Commission.

This measure harmonizes the broad general powers of the park commission with existing specific restrictions on those powers found in other areas of the Oroville Municipal Code. The measure would remove from the Charter the existing provisions described above concerning specified park operations, finances, property, and administrative authority. Those subjects would no longer be governed by those Charter provisions and would instead be addressed by the City under other existing applicable laws, ordinances, policies, agreements, and

funding restrictions. The measure would not itself appropriate or transfer money, sell or change the use of park property, or abolish the Park Commission.

A "yes" vote is a vote to amend the Charter as described above. A "no" vote is a vote to leave the existing Charter language unchanged.

s/Scott E. Huber, City Attorney, City of Oroville, CA

ARGUMENT IN FAVOR OF MEASURE S

No argument in favor was filed.

ARGUMENT AGAINST MEASURE S

No argument against was filed.

FULL TEXT MEASURE S

If you desire a copy of the resolution, please call the City Clerk's Office at (530) 538-2535 and a copy will be mailed at no cost to you.